

The Destruction of Records (Relating to Registering Office in Madhya Pradesh) Rules, 1983

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State of Madhya Pradesh - Act

The Destruction of Records (Relating to Registering Office in Madhya Pradesh) Rules, 1983

MADHYA PRADESH

India

The Destruction of Records (Relating to Registering Office in Madhya Pradesh) Rules, 1983

Rule

THE-DESTRUCTION-OF-RECORDS-RELATING-TO-REGISTERING-OFFICE-IN-MADHYA-PRADESH-RULES-1983
of 1983

Published on 16 April 1984

Commenced on 16 April 1984

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The Destruction of Records (Relating to Registering Office in Madhya Pradesh) Rules, 1983

Published vide Notification No. B-6-19-5-SR-82-1981, dated the 16th April, 1984, M.P. Rajpatra, Part 4 (Ga), dated 24-5-1985 at page 239

In exercise of powers conferred by sub-clause (i) of clause (c) of sub-Section (2) of Section 3 of the Destruction of Records Act, 1917 (No. V of 1917), and in suppression of all rules previously made in this respect, the State Government hereby makes the following rules for the destruction of documents in the custody to registering Officers in Madhya Pradesh, namely-

1.

Short title.

- These rules may be called The Destruction of Records (Relating to Registering Office in Madhya Pradesh) Rules, 1983.

2.

Procedure for destruction of Records.

(1)

The records shown in column (2) of the appendix appended to these rules shall be destroyed under the orders of the Registrar annually in the month of October after the expiry of period shown in column (3) of the appendix against each entry.

(2)

Each sub-registrar shall, in the said month prepare a list of records due for destruction in the form appended to these rules and submit to the Registrar.

(3)

The Registrar shall have full description to order the destruction or retention of all or any record.

(4)

The sub-registrar shall,

(i)

Carry out the orders of the Registrar;

(ii)

Certify at the foot of the list that he has done so; and

(iii)

file the list in part II of the file book.

Note. - (1) For the Registrar's office a similar list shall be prepared and put up by the official of the Registrar's Office.

(2)

File book, Part III, shall not be destroyed unless the circulars, etc., contained therein have been annulled or superseded.

(3)

Before any office copies of pay bills or annual establishment returns are destroyed, the period of temporary and officiating service, as recorded in the service books or service rolls of the Government servant, concerned, should be verified by the head of the office from the office copies of pay bills and establishment returns and the fact of such verification recorded under proper attestation in the service books or service rolls. The heads of offices should also invariably record necessary particulars in service books or service rolls with a view to enabling the Audit Office to decide later by reference merely to such particulars whether the temporary or officiating service will qualify for pension or not, for example, in the case of officiating service, the nature of the vacancy in which the Government servant officiated and in the case of temporary service whether the temporary post was subsequently made permanent, should, be stated.-

Appendix

[See Sub rule (1) of rule 2]

S. No.

Particulars of Records

Period of Retention years.

(1)

(2)

(3)

1.

(a) Office copies of pay bills of Government servants in respect of whom no establishment returns are submitted and no service books & service rolls are maintained

Forty years.

(b) Office copies of pay bills of Government servants other than those referred to in (a) above.

Six years.

(c) Acquittance rolls of pay and allowances other than travelling allowances when maintained separately.

Six years.

2.

File book part II

Twelve years.

3.

Register of impounded documents

Six years.

4.

File book part IV (orders on inspection notes)

Twelve years.

5.

Office copies of monthly and annual returns

Six years.

6.

Fee book

Three years.

7.

(1) Cash account book (Sub Registrar's office)

Three years.

(2) Cash Book (Registrar's office)

Twenty years.

8.

Receipt book

Three years.

9.

File Books, Part V, VI and VII

Three years.

10.

File book, Part VIII (Application for copies Inspections and searches).

Immediately after the inspectors inspection.

11.

Despatch register and account of service postage Stamps

Three years.

12.

Register of Stationery and forms

Three years.

13.

Register of documents delivered by post

Three years.

14.

Routine correspondence

Three years.

15.

Indents, office copies of contingent travelling allowance, commission and copying fee bills, and list of unclaimed documents periodical returns and statements and unimportant miscellaneous papers.

Three years.

16.
Day book
Three years.
17.
Dairy
Six years.
18.
Inward Register of letters
Three years.
19.
Register of deposit of cash box in a treasury, sub-treasury or
a police station-house
Three years.
20.
Register of furniture
Five years.
21.
Register of contract and countersigned contingencies
Five years.
22.
Annual Establishment returns
Thirty years.
23.
Pension cases-
 - (1) Invalid
 - (a) Superior servants
Twenty Five years.
 - (b) inferior servants
Five years.
 - (2) Other kind of pension
Five years,
 - (3) Pensioners who are dead
Immediately the fact is known.
24.
Acknowledgement of memoranda, copies of documents and record
of right, statements dispatched by registering officer.
Two years.
25.
Register of temporary records
Twelve years.
26.
Cases of leave, appointment, transfer of
 - (a) Sub-Registrars
Twelve years.
 - (b) Registration Moharrirs
Twelve years.
 - (c) Registration peons
5 years after retirement.
27.
Form No. 37-G under Section 26-F (1) of the Income Tax Act,
1961

One year

28.

Form No. 34-A under Section 230-A of the Income Tax Act, 1961

Four years.

29.

Panchayat Duty Register together with monthly and annual statement creating thereto.

Six years.

Form

(See Rule 2)

List of books, etc. destroyed in the office of the..... of..... Books or Papers

Name of

Date of the last entry made in them

General description

For what years

By whose order destroyed

Mode of destruction

Remarks

(1)

(2)

(3)

(4)

(5)

(6)

(7)

I certify that the books and papers mentioned in the above list were destroyed in my presence on this..... day of..... 20.....

Signature of Registering Officer.

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